

In the Matter of
Xiaofang Zhong,
Respondent

1

5. The requirement for representation by a qualified U.S. attorney is necessary to enforce compliance by all foreign applicants, registrants, and parties with U.S. statutory and regulatory requirements in trademark matters. 84 Fed. Reg. 31498. It will not only aid the USPTO in its efforts to improve and preserve the integrity of the U.S. trademark register, but it will also ensure that foreign applicants, registrants, and parties are assisted only by authorized practitioners who are subject to the USPTO's disciplinary rules. *Id.*

6. The USPTO has published ample information about the U.S. Counsel Rule. *See, e.g., Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants*, 84 Fed Reg, 31498 (Final Rule) (July 2, 2019); 37 C.F.R. § 2.11 (requirement for representation); Trademark Manual of Examining Procedure § 601 (Requirement for Representation Based on Domicile of Mark Owner).

7. At all relevant times, Respondent had access to information concerning the U.S. Counsel Rule, its policy objectives, and its necessity.

8. As a practitioner who represents foreign-domiciled trademark applicants and registrants before the USPTO, Respondent knew or should have known about the U.S. Counsel Rule, its policy objectives, and its necessity.

Certification under 37 C.F.R. § 11.18 when Presenting Documents to the USPTO

9. Section 11.18 of Part 37 of the Code of Federal Regulations sets forth certification requirements for any correspondence filed with the USPTO. Regarding certifications, § 11.18 states that by presenting a document to the USPTO—whether by signing, filing, submitting, or later advocating—the party presenting such document makes important certifications on which the USPTO relies.¹

10. First, the party presenting a document filed with the USPTO represents that all statements made on the party's own knowledge are true, and that all statements made on the party's information and belief are believed to be true. 37 C.F.R. § 11.18(b)(1). Trademark applications based on use in commerce under 15 U.S.C. § 1051(a) contain the following factual assertions to which the § 11.18 certifications apply:

- The signatory believes that the applicant is the owner of the trademark/service mark sought to be registered;
- The mark is in use in commerce and was in use in commerce as of the filing date of the application on or in connection with the goods/services in the application;
- The specimen(s) shows the mark as used on or in connection with the goods/services in the application, and was used on or in connection with the goods/services in the application as of the application filing date; and

¹ These certifications apply to trademark documents filed with the USPTO. *See* 37 C.F.R. § 2.193(f).

- To the best of the signatory's knowledge and belief, the facts recited in the application are accurate.

Knowingly and willfully false or fraudulent statements are subject to criminal penalty under 18 U.S.C. § 1001 and any other applicable criminal statute. *See id.*

11. Second, § 11.18 provides that the signatory of a document filed with the USPTO certifies that:

[t]o the best of the party's knowledge, information and belief, *formed after an inquiry reasonable under the circumstances*, (i) the paper is not being presented for any improper purpose, such as to harass someone or to cause unnecessary delay or needless increase in the cost of any proceeding before the Office; (ii) the other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law; (iii) the allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and (iv) the denials of factual contentions are warranted on the evidence, or if specifically so identified, are reasonably based on a lack of information or belief.

37 C.F.R. § 11.18(b)(2) (emphasis added).

12. Importantly, § 11.18(b)(1) expressly explains that certification violations "may jeopardize the probative value" of the filing.

USPTO Trademark Signature Rules and TMEP Direction

13. The USPTO trademark signature rules require that all signatures be personally entered by the named signatory and that a person electronically signing a document through the Trademark Electronic Application System ("TEAS") must personally enter any combination of letters, numbers, spaces, and/or punctuation marks that he or she has adopted as a signature, placed between two forward slash ("/") symbols in the signature block on the electronic submission. *See* 37 C.F.R. § 2.193(a) and (c), and 37 C.F.R. § 11.18(a).

14. Trademark applications contain declarations that are signed under penalty of perjury, with false statements being subject to punishment under 18 U.S.C. § 1001. Signatories to declarations in trademark applications make specific representations regarding applicants' use of the mark in commerce and/or their intent to use the mark in commerce. The USPTO relies on such declarations signed under penalty of perjury in trademark applications in the course of examining trademark applications and issuing registrations.

15. At all relevant times, Respondent knew that the USPTO relies on declarations presented to it when determining whether to register a trademark.

16. The USPTO publishes online, and regularly updates, its Trademark Manual of Examining Procedure (“TMEP”) (<https://fqt-tmep.etc.uspto.gov/RDMS/TMEP/current>). The TMEP provides trademark practitioners, *inter alia*, with a reference work on the practices and procedures relative to prosecution of applications to register marks in the USPTO.

17. At all relevant times, the USPTO published unequivocal guidance available to Respondent and other practitioners who practice before the USPTO in trademark matters identifying the proscription against any person other than the named signatory signing electronically trademark documents filed with the USPTO:

All documents must be properly signed. 37 C.F.R. §§ 2.193(a), 11.18(a).

The person(s) identified as the signatory must personally sign the printed form or personally enter the signatory’s electronic signature, either directly on the trademark electronic filing system’s form or in the emailed form. 37 C.F.R. §2.193(a), (d).

A person may not delegate their authority to sign, and no person may sign or enter the name of another. *See In re Zhang*, 2021 TTAB LEXIS 465, at *10, *13 (Dir USPTO 2021) (sanctions); *In re Dermahose Inc.*, Ser. No. 76585901, 2007 TTAB LEXIS 25, at *9 (2007); *In re Cowan*, Reg. No. 1225389, 1990 Commr. Pat. LEXIS 24, at *6 (Comm’r Pats. 1990).

Just as signing the name of another person on paper does not serve as the signature of the person whose name is written, typing the electronic signature of another person is not a valid signature by that person.

Similarly, another person may not use document-signing software to create or generate the electronic signature of the named signatory.

TMEP § 611.01(c) (November 2024) (paragraph spacing added).²

18. As a practitioner who represented trademark clients before the USPTO, Respondent knew or should have known about the signature guidance provided by the USPTO via TMEP § 611.01(c).

Joint Stipulated Facts

A. Respondent’s Law Practice

19. Respondent started practicing law in November 2020.

20. Respondent’s areas of law practice include patent, trademark, copyright, and estate planning.

² Previous versions published in May 2024, November 2023, July 2022, July 2021, and October 2018 (with similar language).

21. At all relevant times, Respondent relied on one paralegal to assist him with his trademark practice. The paralegal was located in Fayetteville, Arkansas. The paralegal was an independent contractor, not an employee.

22. In addition to his paralegal, Respondent had two other non-practitioner assistants involved in his trademark practice. These assistants were located in Shenzhen, China. Each assistant was an employee of an entity that referred Chinese domiciled clients to Respondent, named Domee Intellectual Property 多米知识产权 (“Domee”).

B. Trademark Business Relationships with Foreign-Based Entities

23. Respondent received referrals for trademark clients from four entities: Domee, Rui Zhao Tian 田瑞兆 (“Nora”), Ivy Xu 徐艾薇, and Shanghai Maidetong Software Technology Co., Ltd., 上海麦德通软件技术有限公司 (“IPP Master”).

24. Domee, Nora, Ivy Xu, and IPP Master are each located in China.

25. Trademark clients referred to Respondent by Nora, Domee, and IPP Master were provided with trademark prosecution and litigation services that included (but were not limited to) filing new applications, Change of Attorney Representation (“CAR”) requests, Responses to Office Actions (“ROA”), and responding to matters filed with the USPTO Trademark Trial and Appeal Board (“TTAB”).

26. From November 2020 through January 2021 and from May 2022 through August 2022, Respondent received 610 trademark clients from Nora and Ivy and was paid \$29,094 by Nora and Ivy.

27. From February 2021 through January 2024, Respondent received 926 trademark clients from IPP Master and was paid \$50,930 by IPP Master.

28. From November 2022 through May 2024, Respondent received 5,141 trademark clients from Domee and was paid \$240,270 by Domee.

C. Respondent’s Lack of Knowledge of USPTO Trademark Signature Rules

29. Respondent asserted that he was informed by the USPTO’s Trademark Assistance Center that he was permitted to sign his clients’ names on applications because he had been given a power of attorney.

30. Respondent asserted that he could not recall the reason for contacting the Trademark Assistance Center but represents that (a) he has contacted the center by telephone on occasions for various reasons and (b) “During a call unrelated to the signature issue, this matter came up.”

31. Respondent asserted that he could not remember the exact day of his communication with the USPTO, but he recalled “it was a telephone call in approximately 2021.”

32. Respondent asserted that he could not remember the name of the Trademark Assistance Center representative with whom he spoke and that he has no telephone logs, emails, or notes regarding the telephone call.

33. Notwithstanding the plain and unambiguous guidance set forth in TMEP § 611.01 and the numerous disciplinary decisions already published on the agency’s website in and before 2021, Respondent represented that he was “surprised” to hear “OED’s perspective” that he was not permitted to enter his clients’ signature on trademark documents filed with the USPTO.

D. Respondent’s Violation of the USPTO Trademark Signature Rules

34. Respondent represented to OED that in “rare” cases he entered his trademark clients’ signatures.

35. Respondent also represented to OED that he entered his trademark client’s signature on “a limited number” of responses to Office actions and registration maintenance documents in violation of the USPTO trademark signature rules.

36. Contrary to his representation, USPTO records show that Respondent entered his clients’ signatures on seven hundred and ninety-six (796) trademark documents filed with the Office in violation of the USPTO trademark signature rules.

37. Also contrary to Respondent’s representation, USPTO records show that Respondent signed his clients’ names to documents other than responses to Office actions and registration maintenance documents. USPTO records show that Respondent also entered his clients’ signature on requests for reconsideration and statements of use.

38. Respondent acknowledges that his violation of the USPTO trademark signature rules indicates a lack of competence in handling trademark matters entrusted to his care by his trademark clients seeking trademark registration and protection from the USPTO.

39. Respondent acknowledges that his violation of the USPTO trademark signature rules has caused actual or potential harm to the intellectual property rights of his trademark clients and has adversely affected the integrity of the USPTO trademark registration and maintenance process.

E. Respondent Did Not Adequately Review 2,025 Trademark Documents

40. USPTO records show, that from August 1, 2022, to August 22, 2023, two thousand and twenty-five (2,025) trademark documents were filed with the USPTO from Respondent’s USPTO.gov account that Respondent did not adequately review. Specifically, each of these documents contained an easily identifiable and recurring error, namely: the

“Signature Information” section on the form for the submission incorrectly identifies Respondent as the named signatory under “Signatory’s Name” rather than the name of the person who actually signed the submission that was uploaded with the filing.

41. Respondent’s repeated failure to identify the same error in over 2,025 trademark filings reasonably indicates a significant lack of care and attention to important trademark matters entrusted to his care by his trademark clients seeking trademark registration and protection from the USPTO.

42. Respondent’s repeated failure to identify the same error in over 2,025 trademark filings caused actual or potential harm to the intellectual property rights of his trademark clients.

43. Respondent’s repeated failure to identify the same error in over 2,025 trademark filings adversely affected the integrity of the USPTO trademark registration and maintenance process.

F. Respondent Did Not Adequately Review Trademark Specimens

44. Respondent acknowledged that his review of many specimens presented to the Office on behalf of his trademark clients was inadequate.

45. Respondent’s inadequate review of specimens presented to the Office reasonably indicates a significant lack of care and attention to important trademark matters entrusted to his care by his trademark clients seeking trademark registration and protection from the USPTO.

46. Respondent’s inadequate review of specimens presented to the Office caused actual or potential harm to the intellectual property rights of his trademark clients.

47. Respondent’s inadequate review of specimens presented to the Office adversely affected the integrity of the USPTO trademark registration and maintenance process.

G. Respondent’s Untimely and Inaccurate Representation to the USPTO Office of the Deputy Commissioner for Trademark Examination Policy

48. Respondent’s counsel, on behalf of Respondent, sent a letter dated December 1, 2024, to Deputy Commissioner for Trademark Examination Policy Amy Cotton that identified some of the trademark documents filed with the Office where Respondent had entered the signature of his trademark clients in violation of the USPTO trademark signature rules.

49. Respondent knew that he had violated the trademark signature rule months before his counsel sent the December 1, 2024 letter to Deputy Commissioner Cotton.

50. Respondent’s delay in notifying the Office of the Deputy Commissioner for Trademark Examination Policy was unreasonable.

51. The December 1, 2024 letter contained a material misrepresentation, namely:

Respondent “never allowed anyone else to sign his name. In fact, the only signatures entered were those of clients”

52. The representation was false, misleading, or inaccurate because
- a. USPTO records indicate that Respondent was sent the filing receipt for an August 30, 2023 Response to Petition Inquiry filed in Application No. 98090532. The response bore Respondent’s purported signature and the purported signature of Respondent’s client. The response was filed from a computer located in Fayetteville, Arkansas, by Respondent’s paralegal
 - b. The facts and circumstances surrounding the signing and filing of the August 30, 2023 Response to Petition Inquiry as well as USPTO records establish that Respondent’s paralegal entered Respondent’s signature and Respondent’s client’s signature on the response.
 - c. Respondent was sent the filing receipt for the August 30, 2023 Response to Petition Inquiry and, therefore, knew or reasonably should have known that Respondent’s paralegal entered Respondent’s signature and Respondent’s client’s signature on the response.

53. Respondent acknowledges that that portion of the December 1, 2024, letter to Deputy Commissioner for Trademark Examination Policy Amy Cotton that represents that Respondent “never allowed anyone else to sign his name. In fact, the only signatures entered were those of clients” is inaccurate.

H. Respondent Did Not Notify Clients of the Actual or Potential Harm to Their Trademark Rights in Pending Applications or Issued Registrations Arising from His Violation of the Trademark Signature Rules

54. Respondent did not contact his clients to inform them of the actual or potential harm to their pending trademark applications or issued registrations arising from his violation of the USPTO trademark signature rules.

55. Respondent asserts that he did not do so because he believes it is “premature” to contact clients “without knowing what Trademark Legal Policy plans to do.”

Miscellaneous Considerations

56. Respondent has never been previously disciplined by the USPTO, and he represents that he has not been subject to discipline by any court or any state bar.

57. Respondent represents that he has conducted a good faith and thorough supplemental inquiry as referenced in his counsel’s December 1, 2024, letter to Deputy Commissioner for Trademark Examination Policy Amy Cotton and has not identified any additional trademark documents that were signed by Respondent where Respondent was not the

named signatory on the document;

58. Opposite to that portion of his counsel's December 1, 2024, correspondence to the Office of the Deputy Commissioner for Trademark Examination Policy characterizing Respondent's signing a client's name on trademark filings as may not being "in literal compliance with the technical 'personal' requirements of 37 C.F.R. § 2.193(c)," Respondent understands and acknowledges that the USPTO trademark signature rule requiring the named signatory to enter his or her signature on a trademark document to be presented to the Office is a substantive rule, not a technical requirement.

59. Respondent understands and acknowledges that a failure of the named signatory to enter his or her signature on a trademark document potentially adversely affects trademark applicants' and trademark registrants' intellectual property rights as well as the integrity of the USPTO trademark registration and maintenance process.

Joint Legal Conclusions

60. Respondent acknowledges that, based on the information contained in the Joint Stipulated Facts above, Respondent's act and omissions violated the following provisions of the USPTO Rules of Professional Conduct:

- a. 37 C.F.R. § 11.101 (competent representation) by, *inter alia*, (i) not understanding the USPTO trademark signature rules and guidance; (ii) presenting trademark applications and other trademark documents to the USPTO that were not signed in accordance with USPTO trademark signature rules and guidance; (iii) impermissibly entering clients' signatures to at least 796 trademark documents presented to the Office; (iv) presenting declarations to the USPTO that did not support the factual assertions of use in commerce for which they were presented; and (v) violating 37 C.F.R. § 11.18 by not adequately reviewing trademark documents and trademark specimens and filing 2,025 trademark documents that contained obvious errors;
- b. 37 C.F.R. § 11.103 (acting with reasonable diligence) by, *inter alia*, (i) not understanding the USPTO trademark signature rules and guidance; (ii) presenting trademark applications and other trademark documents to the USPTO that were not signed in accordance with USPTO trademark signature rules and guidance; (iii) impermissibly entering clients' signatures to at least 796 trademark documents presented to the Office; (iv) presenting declarations to the USPTO that did not support the factual assertions of use in commerce for which they were presented; and (v) violating 37 C.F.R. § 11.18 by not adequately reviewing trademark documents and trademark specimens and filing 2,025 trademark documents that contained obvious errors;
- c. 37 C.F.R. § 11.104(a)(2) and (a)(3) (client communications) by, *inter alia*, (i) not informing affected clients of the actual or potential harm to their pending trademark applications or issued registrations because Respondent had entered

796 client signatures on trademark documents in violation of the USPTO signature rules; (ii) not keeping affected clients reasonably informed of the status of their trademark matters; and (iii) not explaining to affected clients that which would reasonably allow the clients to make informed decisions regarding the representation (e.g., inform them of his violation of the signature rules so that the client may make informed decisions including opting to seek alternate counsel);

- d. 37 C.F.R. § 11.303(a)(1), (a)(3), and (d) (violating the duty of candor to the tribunal, the USPTO) by, *inter alia*, not timely informing the Office of the Deputy Commissioner for Trademark Examination Policy of his violation of the trademark signature rule and not timely providing a list of the impermissibly signed documents filed with the USPTO where Respondent was the attorney of record for the applicant at the time the filings;
- e. 37 C.F.R. § 11.804(c) (misrepresentation) by, *inter alia*, (i) presenting trademark documents to the USPTO that Respondent knew were not signed by the named signatory; and (ii) providing inaccurate information to the Office of the Deputy Commissioner for Trademark Examination Policy regarding Respondent's violation of the USPTO trademark signature rules;
- f. 37 C.F.R. § 11.804(d) (engaging in conduct prejudicial to the administration of the USPTO trademark registration system) by, *inter alia*, (i) not understanding the USPTO trademark signature rules and guidance; (ii) presenting trademark applications and other trademark documents to the USPTO that were not signed in accordance with USPTO trademark signature rules and guidance; (iii) impermissibly entering clients' signatures to at least 796 trademark documents presented to the Office; (iv) presenting declarations to the USPTO that did not support the factual assertions of use in commerce for which they were presented; (v) violating 37 C.F.R. § 11.18 by not adequately reviewing trademark documents and trademark specimens and filing 2,025 trademark documents that contained obvious errors; (vi) not timely informing the Office of the Deputy Commissioner for Trademark Examination Policy of his violation of the trademark signature rules and not timely providing a list of the impermissibly signed documents filed with the USPTO where Respondent was the attorney of record for the applicant at the time the filings.

Agreed-Upon Sanction

- 61. Based on the foregoing, it is hereby ORDERED that:
 - a. Respondent is suspended from practice before the Office in patent, trademark, and other non-patent related matters for a period of six (6) months commencing on the date of this Final Order;
 - b. Respondent is granted limited recognition for a period of thirty (30) days to conclude work on behalf of a client on any matters pending before the Office;

and, if such work cannot be concluded, the practitioner shall so advise the client so that the client may make other arrangements;

- c. Respondent shall comply with 37 C.F.R § 11.58;
- d. Respondent shall serve a probationary period that commences on the date of this Final Order and continues for twelve (12) months after the date of an order granting Respondent's petition for reinstatement to practice before the Office;
- e. (1) If the OED Director is of the good-faith opinion that Respondent, during his probationary period, failed to comply with any provision of the Agreement, this Final Order, any of the conditions of his probation, or any provision of the USPTO Rules of Professional Conduct, the OED Director shall:

- (A) issue to Respondent an Order to Show Cause why the USPTO Director should not enter an order immediately suspending the Respondent for up to an additional six (6) months for the violations set forth in the Joint Legal Conclusions, above;

- (B) send the Order to Show Cause to Respondent at the last address of record Respondent furnished to the OED Director pursuant to 37 C.F.R. § 11.11(a);

- (C) grant Respondent fifteen (15) days to respond to the Order to Show Cause; and

(2) in the event that, after the 15-day period for response and consideration of the response, if any, received from Respondent, the OED Director continues to be of the good-faith opinion that Respondent, during Respondent's probationary period, failed to comply with the USPTO Rules of Professional Conduct, the OED Director shall:

- (A) deliver to the USPTO Director: (i) the Order to Show Cause;
- (ii) Respondent's response to the Order to Show Cause, if any; and
- (iii) argument and evidence supporting the OED Director's position;

and

- (B) request that the USPTO Director enter an order immediately suspending Respondent for up to an additional six (6) months for the violations set forth in the Joint Legal Conclusions above;

- f. Nothing herein shall prevent the OED Director from seeking discipline for any misconduct that formed the basis for an Order to Show Cause issued pursuant to the preceding subparagraph;

- g. In the event the Respondent seeks a review of any action taken pursuant to subparagraph e., above, such review shall not operate to stay or otherwise hold in abeyance the suspension;
- h. As a condition of his probation, Respondent, within fourteen (14) days of the date of this Final Order, shall send written correspondence to the USPTO Office of the Deputy Commissioner for Trademark Examination Policy retracting that part of his counsel's December 1, 2024, letter to Deputy Commissioner for Trademark Examination Policy Amy Cotton that represents Respondent "never allowed anyone else to sign his name. In fact, the only signatures entered were those of clients" and explaining that the representation was inaccurate.
- i. As a condition of his probation, Respondent, within fourteen (14) days of the date of this Final Order, shall (1) send written correspondence to the USPTO Office of the Deputy Commissioner for Trademark Examination Policy identifying any additional trademark documents (by application number, date of document, and type of document) not signed by the named signatory and filed with the USPTO where Respondent was the attorney of record for the applicant at the time of filing, including, but not necessarily limited to, documents signed by Respondent's paralegal and (2) provide OED with a copy of such correspondence to the USPTO Office of the Deputy Commissioner for Trademark Examination Policy;
- j. As a condition of his probation, Respondent, within fourteen (14) days of the date of this Final Order, shall (1) send written correspondence to each of his trademark clients notifying each of the actual or potential harm to their pending applications or issued registrations arising due to Respondent's violation of the USPTO trademark signature rules and (2) provide OED with a copy of such correspondence sent to each client;
- k. As a condition of his probation, Respondent shall, at least on a bi-weekly basis, (1) search the USPTO's online trademark search system (currently located at <https://tmsearch.uspto.gov/search/search-information>) for trademark applications identifying him as the attorney of record that were filed with the USPTO after the date of this Final Order and filed (i) prior to the expiration of the limited recognition afforded him but filed without his knowledge or consent or (ii) after the expiration of the period of limited recognition; and (2) promptly inform in writing the USPTO Office of Trademark Examination Policy of each such trademark document;
- l. As a condition of his probation, Respondent shall, at least every two months, submit a written report to the OED Director (1) stating (i) he has completed the bi-weekly searches of the USPTO's online trademark search system database and (2) either (i) stating that he identified no applications or other trademark filing in which he was named as the attorney of record, or (ii) providing copies of

correspondence sent to the USPTO Office of Trademark Examination Policy as described in the preceding subparagraph;

- m. As a condition of being reinstated to practice before the USPTO, Respondent shall:

(1) provide to the OED Director a written declaration, affidavit or statement in compliance with 28 U.S.C. § 1746 signed by Respondent stating that he enrolled in, virtually attended, and completed each of the eight modules comprising the USPTO's Trademark Basics Boot Camp (located on the USPTO website at <https://www.uspto.gov/about-us/events/trademark-basics-boot-camp>);

(2) provide to the OED Director a written declaration, affidavit, or statement in compliance with 28 U.S.C. § 1746 signed by Respondent stating that he has thoroughly reviewed all provisions of the Trademark Manual of Examining Procedure, including but not limited to, the provisions pertaining to the USPTO's signature requirements; and

(3) provide to the OED Director a written declaration, affidavit, or statement in compliance with 28 U.S.C. § 1746 signed by Respondent stating he has successfully completed two (2) hours of continuing legal education credit in ethics/professional responsibility;

- n. As a condition of his probation, Respondent shall, at least on a bi-weekly basis, (1) search the USPTO's online trademark search system (currently located at <https://tmsearch.uspto.gov/search/search-information>) for trademark applications identifying him as the attorney of record that were filed with the USPTO after the date of this Final Order and filed (i) prior to the expiration of the limited recognition afforded him but filed without his knowledge or consent or (ii) after the expiration of the period of limited recognition and prior to the granting of a petition requesting Respondent's reinstatement to practice before the USPTO; and (2) promptly inform in writing the USPTO Office of Trademark Examination Policy of each such trademark document;
- o. As a condition of his probation, Respondent shall, at least every two months, submit a written report to the OED Director (1) stating (i) he has completed the bi-weekly searches of the USPTO's online trademark search system database and (2) either (i) stating that he identified no applications or other trademark filing as described in the preceding subparagraph, or (ii) providing copies of correspondence sent to the USPTO Office of Trademark Examination Policy as described in the preceding subparagraph;
- p. As a condition of his probation, Respondent shall, at least on a bi-weekly basis, make a good faith search of publicly available records for patent application and related patent document filings identifying him as the registered practitioner of record that were filed with the USPTO after the date of this Final

Order and filed (i) prior to the expiration of the limited recognition afforded him but filed without his knowledge or consent, (ii) after the expiration of the period of limited recognition and prior to the granting of a petition requesting Respondent's reinstatement to practice before the USPTO and (iii) after the granting of a petition requesting Respondent's reinstatement to practice before the USPTO and filed without his knowledge or consent; and (2) promptly inform in writing the USPTO Office of Patent Legal Administration of any such patent filings;

- q. As a condition of his probation, Respondent shall, at least every two months, submit a written report to the OED Director (1) stating (i) he has completed the search of publicly available records for patent application and related patent document filings described in the preceding subparagraph and (2) either (i) stating that he identified no such patent documents or (ii) providing copies of correspondence sent to the USPTO Office of Patent Legal Administration as described in the preceding subparagraph;
- r. As a condition of being reinstated and a condition of his probation, Respondent shall have a Patent Practice Monitor and a Trademark Practice Monitor during the probationary period that commences upon his being reinstated to practice before the Office;
- s. The Patent Practice Monitor shall be a person (1) who is registered by the USPTO to practice before the Office in patent matters, (2) who is, and remains, in "active" USPTO registration status throughout Respondent's probation period, and (3) who has been continuously engaged in patent practice before the Office for at least five (5) years immediately preceding Respondent's reinstatement;
- t. The Trademark Practice Monitor shall be a person (1) who is authorized to practice before the Office in trademark and other non-patent matters pursuant to 5 U.S.C. § 500(b); (2) who remains so authorized throughout Respondent's probationary period; and (3) who has been continuously engaged in trademark practice before the Office for at least five (5) years immediately preceding Respondent's reinstatement;
- u. The Patent Practice Monitor and the Trademark Practice Monitor may be the same person provided the person satisfies all of the requirements set forth in the prior two subparagraphs;
- v. Respondent shall be responsible for (a) finding a person to serve as the Patent Practice monitor and (b) paying all costs associated with the Patent Practice Monitor, including the costs, expenses, and fees of the practice monitor (if any are so charged by such Patent Practice Monitor);
- w. Respondent shall be responsible for (a) finding a person to serve as the Trademark Practice monitor and (b) paying all costs associated with the Trademark Practice Monitor, including the costs, expenses, and fees of the practice monitor (if any are so charged by such Trademark Patent Practice

Monitor);

- x. Respondent shall provide the Patent Practice Monitor and the Trademark Practice Monitor with firm documents, client records, and other information the practice monitors may request concerning the report, inquiry, and audit referenced in subparagraphs y. through bb., below;
- y. Every three (3) months, the Patent Practice Monitor shall submit a written report to the OED Director verifying whether, in the professional opinion of the practice monitor —formed after conducting an inquiry reasonable under the circumstances, including, an audit of a reasonable number of Respondent’s filings— Respondent’s processes for obtaining and evaluating information concerning clients’ patent matters are adequate to ensure that Respondent’s presentation of documents to the USPTO comply with the Manual of Patent Examining Procedure (“MPEP”); Respondent’s communications with clients are timely; and Respondent timely reviews and responds to USPTO communications. The Patent Practice Monitor’s quarterly report to the OED Director shall identify with specificity his or her concerns with Respondent’s processes and Respondent’s intended changes to address such concerns. Further, the Patent Practice Monitor’s quarterly report to the OED Director shall identify the specific filings, in the professional opinion of the Patent Practice Monitor, represent significant problems requiring corrective action;
- z. Every three (3) months, the Trademark Practice Monitor shall submit a written report to the OED Director verifying whether, in the professional opinion of the practice monitor —formed after conducting an inquiry reasonable under the circumstances, including, an audit of a reasonable number of Respondent’s filings— Respondent’s processes for obtaining and evaluating information concerning clients’ trademark matters are adequate to ensure that Respondent’s presentation of documents to the USPTO comply with the Trademark Manual of Examining Procedure (“TMEP”); Respondent’s communications with clients are timely; and Respondent timely reviews and responds to USPTO communications. The Trademark Practice Monitor’s quarterly report to the OED Director shall identify with specificity his or her concerns with Respondent’s processes and Respondent’s intended changes to address such concerns. Further, the Trademark Practice Monitor’s quarterly report to the OED Director shall identify the specific filings, in the professional opinion of the Trademark Practice Monitor, represent significant problems requiring corrective action;
- aa. The Patent Practice Monitor’s and the Trademark Practice Monitor’s respective initial report shall be filed promptly with the OED Director within ninety-one (91) days of the date of a decision granting a petition requesting Respondent’s reinstatement to practice before the Office, and their respective subsequent quarterly reports shall be promptly filed every ninety (90) days thereafter (*i.e.*, 181 days after granting such petition; 271 days after granting such petition; etc.);

- bb. Respondent is responsible for the timely submission of the Patent Practice Monitor's and the Trademark Practice Monitor's quarterly reports, and the failure of Respondent to ensure that the Patent Practice Monitor and the Trademark Practice Monitor submits the required written reports promptly shall be appropriate grounds for the OED Director to issue a show cause pursuant to subparagraph e., above;
- cc. The intent of the Patent Practice Monitor's report, inquiry, and audit is to increase the effectiveness of the Patent Practice Monitor in assisting Respondent to represent clients before the Office competently and ethically. To the extent the Patent Practice Monitor has concerns based upon any aspect of the audit referenced in the preceding subparagraphs, the Patent Practice Monitor shall make suggestions or recommendations to Respondent to alleviate such concerns and to help ensure implementation of prudent and effective procedures. Specifically, the Patent Practice Monitor shall make specific suggestions necessary to assure that Respondent's presentation of patent documents to the Office complies with all provisions of the MPEP;
- dd. The intent of the Trademark Practice Monitor's report, inquiry, and audit is to increase the effectiveness of the Trademark Practice Monitor in assisting Respondent to represent clients before the Office competently and ethically. To the extent the Trademark Practice Monitor has concerns based upon any aspect of the audit referenced in the preceding subparagraphs, the Trademark Practice Monitor shall make suggestions or recommendations to Respondent to alleviate such concerns and to help ensure implementation of prudent and effective procedures. Specifically, the Trademark Practice Monitor shall make specific suggestions necessary to assure that Respondent's presentation of patent documents to the Office complies with all provisions of the TMEP;
- ee. Respondent shall take reasonable steps to ensure that, whenever the Patent Practice Monitor views confidential client information, the practice monitor understands and agrees that such matters are to remain confidential pursuant to 37 C.F.R. § 11.106;
- ff. Respondent shall take reasonable steps to ensure that, whenever the Trademark Practice Monitor views confidential client information, the practice monitor understands and agrees that such matters are to remain confidential pursuant to 37 C.F.R. § 11.106;
- gg. Effective the date of the expiration of the 30-day period of limited recognition afforded to Respondent, the USPTO is hereby authorized to disable or suspend any USPTO.gov accounts registered to Respondent as of the date of this Final Order approving the Agreement (including all accounts that Respondent has ever established, sponsored, or used in connection with any trademark or patent matter);

- hh. Respondent shall not apply for a USPTO verified Electronic System account, shall not obtain a USPTO verified Electronic System account, nor shall he have his name added to a USPTO verified Electronic System account, unless and until he is reinstated to practice before the USPTO;
- ii. During Respondent's suspension, he shall be barred from using, accessing, or assisting others in using or accessing any USPTO.gov account(s) or other USPTO filing systems for preparing or filing trademark or patent documents with the USPTO;
- jj. Until a petition seeking Respondent's reinstatement to practice before the USPTO is granted pursuant to 37 C.F.R. § 11.60, Respondent shall be prohibited, and the USPTO is authorized to disallow Respondent, from the following: (1) opening or activating any USPTO.gov account(s) to be used for preparing or filing trademark or patent documents with the USPTO; (2) applying for, or attempting to apply for any USPTO.gov account(s) to be used for preparing or filing trademark or patent documents with the USPTO; (3) verifying, or attempting to verify, any other person's credentials in connection with USPTO.gov account(s) to be used for preparing or filing trademark or patent documents with the USPTO; and (4) sponsoring or attempting to sponsor USPTO.gov account(s) to be used for preparing or filing trademark or patent documents with the USPTO;
- kk. Nothing herein shall obligate the USPTO to take action, sua sponte, to re-activate any USPTO.gov account disabled or suspended pursuant to this order; rather, it shall be Respondent's sole responsibility to initiate any such re-activation of any such USPTO.gov account;
- ll. Respondent shall cooperate fully with the USPTO in any present or future USPTO inquiry made into any persons, associates, or entities with whom Respondent worked in connection with trademark or patent documents submitted to the USPTO;
- mm. Nothing in this Final Order shall prevent the Office from considering the record of this disciplinary proceeding, including this Final Order: (1) when addressing any further complaint or evidence of similar misconduct concerning Respondent brought to the attention of the Office; and/or (2) in any future disciplinary proceeding against Respondent (i) as an aggravating factor to be taken into consideration in determining any discipline to be imposed, and/or (ii) to rebut any statement or representation by or on Respondent's behalf; and/or (3) in connection with any request for reconsideration submitted by Respondent pursuant to 37 C.F.R. § 11.60;
- nn. The OED Director shall electronically publish this Final Order publicly including at the OED's electronic FOIA Reading Room, which is publicly accessible through the Office's website at: <https://foiadocuments.uspto.gov/oed/>;

oo. The OED Director shall publish a notice publicly including in the Official Gazette that is materially consistent with the following:

Notice of Suspension, Probation, and Practice Monitors

This notice concerns Xiaofang Zhong of Philadelphia, Pennsylvania, a practitioner who is registered (Reg. No. 65,747) to practice before the United States Patent and Trademark Office (“USPTO”) or (“Office”). Mr. Zhong is also an attorney licensed to practice in the State of New York (Reg. No. 5054689) and Georgia (date of admission: 2022), who engaged in practice before the USPTO in trademark matters. The USPTO Director has suspended Mr. Zhong from practice before the Office in patent, trademark, and other non-patent matters for six (6) months and placed him on probation for violating 37 C.F.R. §§ 11.101; 11.103; 11.104(a)(2) and (a)(3); 11.303(a)(1), (a)(3), and (d); and 11.804(c) and (d) of the USPTO Rules of Professional Conduct. Mr. Zhong is also required to have a patent and trademark practice monitors for a limited period of time upon being reinstated to practice before the USPTO.

Mr. Zhong represented foreign-domiciled trademark clients referred to him through foreign-based third-party intermediary entities that were primarily located in China. The referring companies included Domee Intellectual Property, 多米知识产权; Rui Zhao Tian, 田瑞兆 (“Nora”); Ivy Xu, 徐艾薇; and Shanghai Maidetong Software Technology Co., Ltd., 上海麦德通软件技术有限公司 (“IPP Master”). Mr. Zhong’s violations of the USPTO Rules of Professional Conduct are predicated, in part, on his (i) not understanding the USPTO trademark signature rules and guidance; (ii) presenting trademark applications and other trademark documents to the USPTO that were not signed in accordance with USPTO trademark signature rules and guidance; (iii) impermissibly entering clients’ signatures to at least 796 trademark documents presented to the Office; (iv) presenting declarations to the USPTO that did not support the factual assertions of use in commerce for which they were presented; (v) violating 37 C.F.R. § 11.18 by not adequately reviewing trademark documents and trademark specimens and filing 2,025 trademark documents that contained obvious errors; (vi) not informing affected clients of the actual or potential harm to their pending trademark applications or issued registrations because Respondent had entered 796 client signatures on trademark documents in violation of the USPTO signature rules; (vii) not keeping affected clients reasonably informed of the status of their trademark matters; and (viii) not explaining to affected clients that which would reasonably allow the clients to make informed decisions regarding the representation (e.g., inform them of his violation of the signature rules so that the client may make informed decisions including opting to seek alternate counsel); and (ix) not timely informing the Office of the Deputy Commissioner for Trademark Examination Policy of his violation of the trademark signature rule and not timely providing a list of the

impermissibly signed documents filed with the USPTO where Respondent was the attorney of record for the applicant at the time the filings. Mr. Zhong's acts and omissions in connection with his representation of foreign-domiciled trademark clients (a) actually or potentially caused harm to his clients' intellectual property rights in their pending applications or issued registrations and (b) adversely affected the integrity of the USPTO trademark registration process.

The USPTO has published ample, readily available information for practitioners regarding what is competent practice before the Office in trademark matters. In particular, the agency maintains a webpage regarding important trademark information including specific links to relevant laws, rules, regulations, and rulemaking. (*Available at* www.uspto.gov/trademarks)

The agency publishes online and regularly updates its Trademark Manual of Examining Procedure ("TMEP") (*Available at* tmept.uspto.gov/RDMS/TMEP/current). The TMEP is a guidance document that provides trademark practitioners, *inter alia*, with a reference work on the practices and procedures relative to prosecution of applications to register marks in the USPTO. For example, TMEP § 611.01 provides clear guidance on the agency's signature rules, including that (a) the person(s) identified as the signatory must personally sign the document (e.g., a paralegal, legal assistant, or secretary may not sign or enter the name of an attorney or other authorized signatory), (b) a person may not delegate their authority to sign, and (c) no person may use document-signing software to enter or electronically generate someone else's signature.

The USPTO has published ample information about the U.S. Counsel Rule. *See, e.g., Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants*, 84 FR 31498 (Final Rule) (July 2, 2019); 37 C.F.R. § 2.11 (Requirement for representation); TMEP § 601. There is also ample, readily available information for practitioners regarding what is ethical practice before the Office in trademark matters. For example, the USPTO has a searchable OED FOIA webpage (found at <https://foiadocuments.uspto.gov/oed>).

Therefore, practitioners who represent applicants, registrants, or others before the USPTO in trademark matters — including those who serve as U.S. counsel for foreign-domiciled clients — are reasonably expected to know (a) the applicable trademark prosecution rules, (b) the provisions of the USPTO Rules of Professional Conduct implicated by such representation, and (c) the potential disciplinary consequences when such provisions of the USPTO Rules of Professional Conduct are violated. The USPTO Director has issued numerous orders imposing discipline on trademark practitioners who violated the USPTO Rules of Professional Conduct based on not complying with USPTO trademark signature rules, not adequately supervising non-attorneys, and/or not fulfilling obligations under 37 C.F.R. § 11.18 to conduct an inquiry reasonable under the circumstances in support of factual assertions made in trademark documents

presented to the USPTO, including:

In re Swyers, Proceeding No. D2016-20 (USPTO Jan. 26, 2017)
In re Meikle, Proceeding No. D2019-17 (USPTO Mar. 21, 2019)
In re Crabtree, Proceeding Nos. D2018-31 & -47 (USPTO Apr. 25, 2019)
In re Sapp, Proceeding No. D2019-31 (USPTO May 15, 2019)
In re Sweeney, Proceeding No. D2019-33 (USPTO June 19, 2019)
In re Mar, Proceeding No. D2019-11 (USPTO Aug. 2, 2019)
In re Rajan, Proceeding No. D2019-30 (USPTO Sep. 5, 2019)
In re Caraco, Proceeding No. D2019-50 (USPTO Sep. 12, 2019)
In re Caldwell, II, Proceeding No. D2020-12 (USPTO Mar. 17, 2020)
In re Bashtanyk, Proceeding No. D2020-09 (USPTO Apr. 17, 2020)
In re Lou, Proceeding No. D2021-04 (USPTO May 12, 2021)
In re Mincov, Proceeding No. D2020-30 (USPTO Aug. 23, 2021)
In re Reddy, Proceeding No. D2021-13 (USPTO Sep. 9, 2021)
In re David, Proceeding No. D2021-08 (USPTO Sep. 24, 2021)
In re Di Li, Proceeding No. D2021-16 (USPTO Oct. 7, 2021)
In re Hom, Proceeding No. D2021-10 (USPTO Dec. 17, 2021)
In re Yang, Proceeding No. D2021-11 (USPTO Dec. 17, 2021)
In re Pasquine, Proceeding No. D2019-39 (USPTO Mar. 28, 2022)
In re Wan, Proceeding No. D2022-04 (USPTO Apr. 11, 2022)
In re Morton, Proceeding No. D2022-07 (USPTO Apr. 20, 2022)
In re Hao, Proceeding No. D2021-14 (USPTO Apr. 27, 2022)
In re Zhang, Proceeding No. D2022-16 (USPTO July 11, 2022)
In re Daoyou Tim Liu, Proceeding No. D2022-03 (USPTO Aug. 9, 2022)
In re Han, Proceeding No. D2022-23 (USPTO Jan. 6, 2023)
In re Song, Proceeding No. D2023-10 (USPTO May 1, 2023)
In re Gallagher, Proceeding No. D2023-08 (USPTO June 23, 2023)
In re Jabbour, Proceeding No. D2023-33 (USPTO Sep. 6, 2023)
In re Wang, Proceeding No. D2023-38 (USPTO Nov. 21, 2023)
In re Niu, Proceeding No. D2023-32 (USPTO Jan. 3, 2024)
In re Huang, Proceeding No. D2023-37 (USPTO Jan. 8, 2024)
In re Bethell, Proceeding No. D2019-42 (USPTO Jan. 27, 2024)
In re Koh, Proceeding No. D2024-07 (USPTO Feb. 7, 2024)
In re Che-Yang Chen, Proceeding No. D2024-01 (USPTO Mar. 20, 2024)
In re Haffner, Proceeding No. D2023-35 (USPTO May 21, 2024)
In re Oldham, Proceeding No. D2024-11 (USPTO May 29, 2024)
In re Harper, Proceeding Nos. D2020-10 and D2024-15 (USPTO Aug. 13, 2024)
In re Yu, Proceeding No. D2024-24 (USPTO Aug. 20, 2024)
In re Khalsa, Proceeding No. D2019-38 (USPTO Sep. 5, 2024)
In re Weitao Chen, Proceeding No. D2024-21 (USPTO Sep. 11, 2024)
In re Campbell, Proceeding No. D2019-41 (USPTO Oct. 10, 2024)
In re Jie Luo, Proceeding No. D2024-02 (USPTO Oct. 25, 2024)
In re Qinghe Liu, Proceeding No. D2023-39 (USPTO Nov. 21, 2024)
In re Angus Ni, Proceeding No. D2024-20 (USPTO Dec. 19, 2024)
In re Okeke, Proceeding No. D2024-18 (USPTO Jan. 6, 2025)

In re Engfield, Proceeding No. D2025-12 (USPTO Mar. 10, 2025)
In re Shan Zhu, Proceeding No. D2024-19 (USPTO Mar. 18, 2025)
In re Horton, Proceeding No. D2025-15 (USPTO Mar. 20, 2025)
In re Rapacke, Proceeding No. D2025-16 (USPTO Mar. 20, 2025)
In re Hao Ni, Proceeding No. D2025-14 (USPTO Mar. 31, 2025)

Trademark practitioners should be mindful that the USPTO trademark signature rule requiring the named signatory to enter his or her signature on a trademark document to be presented to the Office is a substantive rule, not a mere technical requirement. *In re Stelcore Management Services, LLC*, 2025 Comm'r. Pat. *4 (USPTO Show Cause Order May 5, 2025). Therefore, a failure of a named signatory to enter his or her signature on a trademark document potentially adversely affects a trademark applicants' and trademark registrants' intellectual property rights as well as the integrity of the USPTO trademark registration process.

This action is the result of a settlement agreement between Mr. Zhong and the OED Director pursuant to the provisions of 35 U.S.C. §§ 2(b)(2)(D) and 32, and 37 C.F.R. §§ 11.19, 11.20, and 11.26. Disciplinary decisions involving practitioners—including the many who have been disciplined for not complying with the USPTO trademark signature rules and their ethical obligations under the USPTO Rules of Professional Conduct connected with serving as counsel for foreign-domiciled trademark applicants—are posted for public reading at the Office of Enrollment and Discipline Reading Room accessible at: <https://foiadocuments.uspto.gov/oed>.

pp. Based on Respondent's agreement to do so, Respondent waives all rights to seek reconsideration of this Final Order under 37 C.F.R. § 11.56, waives the right to have this Final Order reviewed under 37 C.F.R. § 11.57, and waives the right otherwise to appeal or challenge this Final Order in any manner; and

qq. Prior to reinstatement to practice before the USPTO, the Respondent shall pay the costs of the disciplinary proceeding, which include all of the costs set forth in 37 C.F.R. § 11.60(d)(2).

(signature page follows)

(signature page for Final Order (D2025-18))

Users, Choe, Tricia
Digitally signed by Users,
Choe, Tricia
Date: 2025.05.21
08:21:04 -04'00'

Tricia Choe
Associate General Counsel for General Law
United States Patent and Trademark Office

Date

on delegated authority by

Coke Morgan Stewart
Acting Under Secretary of Commerce for Intellectual Property and
Acting Director of The United States Patent and Trademark Office

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing Final Order was sent, on this day, to the parties in the manner indicated below-

Via e-mail:

Emil J. Ali
McCabe & Ali, LLP
emil@mccabeali.com
Counsel for Respondent Xiaofang Zhong

Via e-mail:

Mary Brannen
Sydney Johnson
Mary.Brannen@uspto.gov
Sydney.Johnson@uspto.gov
[REDACTED]
Counsel for OED Director

5/21/2025
Date

Luke L. Nicholson
U.S. Patent and Trademark Office
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Alexandria, VA 22313-1450